



UPSC GUIDE

BY THE ACHIEVERS FOR THE ASPIRANTS

Self Study Plan Week 1 (Polity) Model Answer

Student Name: _____

Contact Number: _____ Email: _____

TIME ALLOWED: _____

Maximum Marks: _____

INSTRUCTIONS

Please read each of the following Instructions carefully before attempting the paper.

- i) There are **Five** questions.
- ii) All questions are compulsory.
- iii) Marks carried by a Question/Part are indicated against it.
- iv) Word limit in questions, wherever specified should be adhered to.
- v) Any page or portion of the page left blank in the Question-Cum-Answer Booklet must be clearly struck off.
- vi) Answer must be written in English in the Question-Cum-Answer (QCA) Booklet in the space provided.

EXAMINER'S REMARKS

UPSC GUIDE
BY THE ACHIEVERS FOR THE ASPIRANTS



KEEP IT UP YOU HAVE GREAT POTENTIAL. KEEP PRACTICING.

(Please do not write anything except the question number in this space)

UPSC

उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए
Candidates Must Not Write On This Margin

Q1. How far does the Constitution of India owe its genesis to the Government of India Act, 1935? Discuss.

(150 Words, 10 Marks)

Model Answer:

Introduction:

The Constitution of India, adopted on 26 November 1949, did not emerge in a vacuum. The Constituent Assembly consciously chose to build upon the existing administrative and governmental framework of the Government of India Act, 1935, rather than making a complete break from the past. This Act, though enacted by the British Parliament, provided a ready structure that shaped the genesis of India's Constitution.

Body:

Several key features of the Constitution were borrowed and adapted from the GOI Act, 1935:

- ① **Federalism:** The Act envisaged an All-India Federation with division of powers between centre and provinces, reflected in Article 1 and the Seventh Schedule (Union, State, and Concurrent Lists).
- ① **Parliamentary Form of Government:** It replaced dyarchy with provincial autonomy and responsible governments, which evolved into parliamentary democracy at the Centre (Articles 74-75) and States (Articles 163-164).
- ① **Bicameralism:** The Act introduced bicameral legislatures in provinces, continued in the Constitution at both levels.
- ① **Judiciary:** The Federal Court established under the Act became the precursor to the Supreme Court (Article 124).
- ① **Reserve Bank of India:** The RBI, set up under the 1935 Act, was retained.

Conclusion:

Though heavily influenced by the 1935 Act, these features were suitably adapted to suit India's democratic aspirations and socio-economic realities. This pragmatic approach has ensured the Constitution's robustness and continued successful functioning for over seven decades despite numerous challenges.

(Please do not write anything except the question number in this space)

UPSC

उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए
Candidates Must Not Write On This Margin

Q2. When is constitution day celebrated in India? Elaborate the historical underpinnings of Indian constitution and their influence on evolution of constitution.

(150 Words, 10 Marks)

Model Answer:

Introduction:

Constitution day is celebrated on 26th November every year to commemorate the adoption of Indian constitution.

India, the mother of democracy, achieved independence from colonial rule in 1947. In 1950, the Indian Constitution came into force, outlining a framework for the country's governance. The Constitution draws on a rich legacy of Indian political and social thought and reflects the nation's historical experiences.

Historical Underpinnings of Indian Constitution:

➤ **Indigenous Traditions:**

- The Constitution draws upon India's **ancient and medieval political and social traditions**. Ancient Indian texts such as the **Vedas, Upanishads, and Dharmashastras** provided insights into the nature of governance, rights, and duties.
- The **Buddhist and Jain teachings on non-violence, tolerance, and equality** also influenced the Constitution's framing.
- **Bhakti movement's emphasis on individual liberty and spiritual equality** also found reflection in the Constitution.

➤ **Colonial Experiences:**

- The Indian National Congress and other **political movements** that emerged during the colonial period **drew heavily on Western ideas of liberty, democracy, and constitutionalism**.
- The **Montagu-Chelmsford Reforms of 1919 and the Government of India Act of 1935** laid the groundwork for the Constitution's eventual drafting.

➤ **Western Political Thought:**

- The Constitution also reflects the influence of Western political thought, mainly the **ideas of liberal democracy and the separation of powers**.
- The framers of the Indian Constitution were **inspired by the American and French Constitutions and the British parliamentary system**.
- The Constitution also incorporates **elements of socialist and Gandhian thought, such as the idea of social and economic justice** and the emphasis on non-violence.

(Please do not write anything except the question number in this space)	UPSC	उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए Candidates Must Not Write On This Margin
	Influence on the Evolution of the Indian Constitution: ➤ Drafting of the Constitution: ➤ The Constituent Assembly was deeply influenced by India's diverse historical and social experiences. ➤ The debates and discussions during the drafting process reflected the influence of India's indigenous traditions, colonial experiences, and Western political thought. ➤ Incorporation of Fundamental Rights: ➤ The Constitution's fundamental rights reflect India's ancient and medieval traditions of individual liberty and social justice. ➤ The right to life, liberty, and equality before the law draw on India's Dharmashastras and the Bhakti movement's emphasis on spiritual equality. ➤ The inclusion of the right to freedom of religion and cultural and educational rights reflects India's diverse social fabric. ➤ Amendments to the Constitution: ➤ The Indian Constitution's evolution through amendments reflects the changing political and social landscape of the country. ➤ The inclusion of Directive Principles of State Policy in the Constitution, inspired by Gandhian and socialist thought, was a significant addition that reflected India's post-independence aspirations. ➤ 73rd and 74th Constitutional Amendments of 1992 that empowered local governance reflect India's commitment to grassroots democracy. ➤ Landmark judgments by the Supreme Court that have influenced the evolution of the Indian Constitution: ➤ The Kesavananda Bharati case (1973), which established the principle of the basic structure of the Constitution, means that certain core features of the Constitution cannot be amended. ➤ The Minerva Mills case (1980), which upheld the principle of judicial review and struck down certain provisions of the 42nd Amendment. Conclusion: The historical underpinnings reflect India's diverse social and political experiences. The Constitution has evolved through amendments to reflect changing aspirations and challenges. Despite this the Constitution remains a living document, reflecting India's democratic and pluralistic ethos.	
	Page No: 03 Address-UPSC Guide, Near Jnyanprabodhini, Opposite to Radhika Bhel, Sadashiv Peth, Pune	

(Please do not write anything except the question number in this space)

UPSC

उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए
Candidates Must Not Write On This Margin

Q3. “Preamble is the manifestation of basic fundamental values and philosophy on which the entire Constitution of India has been built”. Elaborate.

(150 Words, 10 Marks)

Model Answer:

Introduction:

The Preamble to the Constitution of India is its introductory statement that declares the philosophy, objectives, and core values on which the entire Constitution is built. Often described as the “soul of the Constitution,” it serves as a mirror reflecting the ideals and aspirations of the people of India.

Body:

The Preamble reveals the source of authority (“We the People of India”), the nature of the Indian State (Sovereign, Socialist, Secular, Democratic Republic), and its objectives. It enshrines the fundamental values of **Justice** (social, economic, political), **Liberty** (of thought, expression, belief, faith, and worship), **Equality** (of status and opportunity), and **Fraternity** (assuring dignity of the individual and unity and integrity of the nation).

These values are further reinforced through various provisions: Secularism and freedom of religion (Article 25), democratic principles (Article 326), and equality (Articles 14-16). The words “Socialist” and “Secular” were added by the 42nd Amendment, strengthening the commitment to social justice and religious harmony.

Conclusion:

The Preamble acts as a guiding light for the judiciary, legislature, and executive. It helps in interpreting ambiguous provisions and remains highly relevant in safeguarding constitutional values even today. Its philosophy continues to inspire the nation’s democratic journey.

(Please do not write anything except the question number in this space)

UPSC

उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए
Candidates Must Not Write On This Margin

Q4. What is the controversy behind the Citizenship Amendment Act? Can the policy gain a wider ground of reconciliation with NPR/NRC project?

(250 Words, 15 Marks)

Model Answer:

Introduction:

The Citizenship Amendment Act (CAA), 2019 aims to provide Indian citizenship to persecuted non-Muslim minorities — Hindus, Sikhs, Jains, Buddhists, Parsis and Christians — from Pakistan, Bangladesh and Afghanistan who had entered India before 31st December 2014. Though intended as a humanitarian measure, the Act has generated significant controversy across the country.

Body:

The main controversy revolves around the exclusion of Muslims from the list of beneficiaries, which critics argue violates the secular character of the Indian Constitution by introducing religion as a criterion for citizenship. Opposition parties also questioned why persecuted minorities from other neighbouring countries such as Nepal and Sri Lanka were not included.

In Assam and other North-Eastern states, the Act faced strong backlash from ethnic Assamese and tribal groups. They fear that it will encourage further influx of migrants and impose an additional burden on the region, thereby diluting the cultural, linguistic and social identity of the indigenous people protected under Clause 6 of the Assam Accord, 1985. This has intensified the historical insider-outsider debate in the North-East.

Furthermore, the CAA is perceived to be at cross-purposes with the National Register of Citizens (NRC) and National Population Register (NPR) exercises. While NRC seeks to identify and exclude illegal immigrants, the CAA provides a pathway to citizenship for non-Muslim migrants, particularly those who came between 1966 and 1974 in Assam, thus undermining the spirit of the NRC update.

Conclusion:

Although the Citizenship Amendment Act addresses the genuine issue of religious persecution faced by minorities in neighbouring countries, its selective nature and inadequate safeguards for regional sensitivities have limited its acceptance. For wider reconciliation with the NRC-NPR project, the government must build broader consensus, incorporate stronger protections for North-Eastern states, and address long-standing grievances of indigenous communities. A balanced approach balancing humanitarian concerns with national security and local aspirations is essential.

(Please do not write anything except the question number in this space)

UPSC

उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए
Candidates Must Not Write On This Margin

Q5. Freedom of Speech and expression is one of the most evolved constitutional provisions. It has been described as an “Inalienable adjunct” to Right to life. Elaborate.

(250 Words, 15 Marks)

Model Answer:

Introduction:

The right to express one's opinion without censorship, restraint, or legal penalty is known as the freedom of speech. The power to speak in an open forum is the essence of free society and it must be safeguarded at all times. One's opinions may, therefore, be expressed by speaking, writing, printing, painting, caricaturing, photography, etc. This freedom includes a person's right to propagate or publish the views of other people too.

Body:

In India, the freedom of speech and expression is guaranteed under Article 19(1) (a) of the Constitution of India. Apart from this, some provisions relating to the freedom of speech and expression are also contained under various international conventions like the Universal Declaration of Human Rights (UDHR), European Convention on Human Rights and Fundamental Freedoms, International Covenant on Civil and Political Rights, etc.

Article 19(1) (a) states that all citizens shall have the right to freedom of speech and expression. It is subject to limitations imposed under Article 19(2), which empowers the State to put 'reasonable' restriction on various grounds, namely, national security, friendly relations with foreign States, public order, decency and morality, contempt of court, defamation, incitement of offence, and integrity and sovereignty of India.

The right to free speech and expression is inalienable. The Constitution's role, therefore, is not to grant it, but to protect citizens from any attempt by the State to infringe upon it.

The Supreme Court in AK Gopalan case (1950) held that any particular freedom cannot fall under both A19 and A21, as they occupy exclusive domains. However, in the RC Cooper case (1970), the court reversed its decision that A19 and A21 occupy different and exclusive fields. The court was explicit in the Maneka case (1978) that there existed certain freedoms that fell within both Articles 19 and 21, and for such freedoms the state would have to satisfy the burdens envisaged in both provisions, along with satisfying the non-arbitrariness requirements of Article 14.

The court held that the 'Right to life' is not merely confined to animal existence or survival, but it also includes the right to live with human dignity and all those aspects of life which make it meaningful, complete and worth living. It also ruled that 'personal liberty' is of the widest amplitude and covers a variety of rights that go to constitute the personal liberties of a person. Thus, it also includes the rights and freedoms under A19 like the right to freedom of speech and expression.

(Please do not write anything except the question number in this space)	UPSC	उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए Candidates Must Not Write On This Margin
	Conclusion: Eminent American jurist and Judge Benjamin N. Cardozo once said, “Freedom of expression is the matrix, the indispensable condition, of nearly every form of freedom.” The right to freedom of speech and expression extending the concept of citizenship to include sociopolitical participation of a person is critical in the process of determining the scope of Right to life of a citizen under Article 21 of the Constitution.	
	Page No: 07 <i>Address-UPSC Guide, Near Jnyanprabodhini, Opposite to Radhika Bhel, Sadashiv Peth, Pune</i>	